

payable to Donnithorne alone, and in leaving the state of the funds unascertained for five years (c). I agree with the Master of the Rolls that inquiry might, on the principles of this Court, have discharged the trustees in given circumstances from a breach of trust. If, without previous participation, they in June, 1795, had found that, being themselves implicated in no breach of trust, they had a co-trustee who had been guilty of a shameful violation of his duty, and immediately exerted themselves to obtain from him a mortgage, which was their object at that time, and used their utmost efforts instead of filing a bill in this Court which perhaps might have destroyed his means of giving security, I should have hesitated long before I charged them, if inquiry had satisfied me that for a simple contract debt due to them they had taken a bond and a mortgage instead of instituting a suit, with the rational hope that by means of the bond and the mortgage they should obtain payment from their co-trustee" (a). The result of his Lordship's judgment was, that under the circumstances disclosed by the Master's report, the trustees were to be held responsible for the loss of the money.

6. Executor answerable for joining in receipts pro formâ. — *Co-executors* also, like co-trustees, are generally answerable each for his own acts only, and not for the acts of any co-executor (b).¹ But in respect of receipts, the case of *co-executors*

(c) 3 Sw. 67.

Eliz. 318; Anon. Dyer, 210 a; Wentw.

(a) 3 Sw. 71; see *Thompson v. Finch*, 22 Beav. 326.

Off. Ex. 306, 14 edit.; *Williams v. Nixon*, 2 Beav. 472.

(b) *Hargthorpe v. Milforth, Cro.*

¹ *Co-executors.* — Executors, like trustees, are as a rule liable for their own acts only; *McKim v. Aulbach*, 130 Mass. 481; *Sutherland v. Brush*, 7 Johns. Ch. 17; *Kerr v. Kirkpatrick*, 8 Ired. Eq. 137; *Kerr v. Water*, 19 Ga. 136; *White v. Bullock*, 20 Barb. 91; *Clarke v. Jenkins*, 3 Rich. Eq. 318.

If, however, an executor joins in giving a receipt he is liable, for he is not obliged to join for conformity, and has an individual authority in reference to the estate; *Monell v. Monell*, 5 Johns. Ch. 283; *Johnson v. Johnson*, 2 Hill, Eq. 290; *Sterrett's App.* 2 Pa. 219; *Monahan v. Gibbons*, 19 Johns. 427; likewise if he join in power of sale, though he receives none of the money; *Hausser v. Lehman*, 2 Ired. 594; *Deaderick v. Cantrell*, 10 Yerg. 263; *Ochiltree v. Wright*, 1 Dev. & B. Eq. 336; yet some cases try to put trustees and executors on the same footing in this respect; *McKim v. Aulbach*, 130 Mass. 481; *M'Nair's App.* 4 Rawle, 145; *Stell's App.* 10 Barr, 152. If an executor